The ethics of infant male circumcision

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INTRODUCTION

Is the non-therapeutic circumcision of infant males morally permissible? The most recent major development in this long-simmering debate was the 2012 release of a policy statement and technical report on circumcision by the American Academy of Pediatrics (AAP). In these documents, the US paediatricians' organisation claimed that the potential health benefits of infant circumcision now outweigh the risks and costs. They went on to suggest that their analysis could be taken to justify the decision of parents to choose circumcision for their incompetent children.[1]

Circumcision and 'health benefits'

The AAP's pronouncement unleashed a firestorm of commentary, much of it censorious. In this issue, human rights attorney J Steven Svoboda and Professor of Clinical Paediatrics Robert Van Howe take the AAP to task[i] for committing numerous significant errors, both in their analysis of relevant evidence and in basic medical-ethical reasoning.[3] In addition, an independent international panel—composed of 38 leading paediatricians, paediatric surgeons, urologists, medical ethicists and heads of hospital boards and children's health societies—has likewise condemned the findings of the AAP. Writing in the journal *Pediatrics*, these authors state:

> Only one of the arguments put forward by the American Academy of Pediatrics has some theoretical relevance in relation to infant male circumcision; namely, the possible protection against urinary tract infections in infant boys, which can easily be treated with antibiotics without tissue loss. The other claimed health benefits, including protection against HIV/AIDS, genital herpes, genital warts, and penile cancer, are questionable, weak, and likely to have little public health relevance in a Western context, and they do not represent compelling reasons for surgery before boys are old enough to decide for themselves.[4]

My own analysis of the AAP documents—and of 'health benefits' defences of circumcision generally—can be found elsewhere.[5] Let me turn my attention in this editorial, then, to the question of cultural and religious justifications for the procedure. These are more principally the theme of the Special Issue, and have taken centre stage especially in Europe since the recent decision of a Cologne court that ritual removal of the foreskin constitutes an unconstitutional form of bodily injury.[ii]

Circumcision as a religious practice

Defenders of religiously or culturally motivated circumcision sometimes stress that it is an ancient tradition, stretching back thousands of years. By doing so they seem to suggest that the sheer antiquity of the practice implies a kind of venerability, or even sanctitude. How could the fundamental legal status of so timeworn a religious custom be seriously called into question?

This perspective is not uncommon, and those who hold to it are undoubtedly sincere in their convictions. In the United States, especially, attitudes toward circumcision are predominantly favorable: there—unlike in Europe, Canada, Australia and New Zealand—circumcision remains a popular, if waning, cultural habit even outside of any religious context. Since most Americans, including many American doctors, are simply unaware of the complex anatomy and diverse sexual functions of the foreskin (i.e., functions that are *necessarily* lost to circumcision[3]) the age-old benignity of 'snipping it off' seems practically self-evident.

What is left unacknowledged by appeals to antiquity, however, is that while they can in some cases lend an air of historical augustness, they can also signal the potential for the existence of an ethical minefield. In the case of circumcision, the practice is *so* ancient that its origins can be traced to a period as problematic as the Bronze Age[9]—an era in which, as Hanoch Ben Yami intimates,[10] superstition reigned supreme, harmful propitiations were the norm, and women and children were considered chattel.[iii] Unfortunately, modern day ritual circumcision not only inherits and reflects, but also serves to perpetuate, at least some of the underlying metaphysic of that earlier epoch.[12]

The result is a rather uncomfortable tension between the implicit meta-ethical logic of this prehistoric practice and the normative foundation of (much of) contemporary Western law and custom. As I noted recently in *The Philosophers' Magazine*:

> Ritual circumcision is a pre-Enlightenment tribal tradition. [Both the Jewish and Islamic versions require] males [to sacrifice] functional erogenous tissue to an excruciating surgery done years before they are old enough to give [meaningful] consent. … Both versions are consistent with the norms of [patriarchy]; both elevate the concerns of the community over the freedom of the individual to make decisions about his own body in his own time; and both brand a child with a permanent mark of religious belonging despite the significant possibility that he may one day fail to embrace the belief system and/or cultural practices of his parents.[13]

By contrast, contemporary medical ethics as well as the philosophical basis of many modern legal codes came to fruition in a secular[iv], post-Enlightenment era—one that favours a very different set of values from the ones alluded to above.[v] These include such concepts as autonomy, consent, individual rights, bodily integrity, the freedom to join (or to leave) a religion, the needfulness of protecting the vulnerable in society against the unwarranted exertions of the powerful, and a child's interests in—or as some would have it, 'rights to'—self-determination and an open future.[vi] As several of the contributors to this Special Issue have taken pains to note, this deeply-rooted tension between pre- and post-Enlightenment world views is the source of much of the current—as well as historical—controversy surrounding the ethics of infant male circumcision.[vii]

Pre- vs. post-Enlightenment: resolving the tension

How might this tension be resolved? Given that Western societies have gradually succeeded in abandoning a very wide range of once hallowed traditions that came to conflict with subsequent developments in law and morality, one possible argument—and

[i] A formal response by the AAP has been published alongside the critique by Svoboda and Van Howe.[2]

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[ii] The Cologne court ruling is discussed in detail by Reinhard Merkel and Holme Putzke,[6] as well as by Joseph Mazor[7] and Matthew Johnson.[8]

[iii] See related arguments by Van Howe.[11]

[iv] Or at least: non-ecclesiocratic.

[v] See Svoboda.[14]

[vi] For an in-depth discussion of the child's right to an open future, see Darby.[15]

[vii] See also Earp and Darby.[16]

one that is increasingly being advanced by legal scholars, ethicists, and more liberal-minded Muslims and Jews— is that the time has come to likewise abandon the practice of cutting off infants' foreskins. If this were accomplished through the enforcement of existing prohibitions on committing acts of sexual violence, it would certainly serve to eliminate a number of clumsy inconsistencies in Western legal statutes. For example, laws that uniquely exempt non-therapeutic infant male circumcision from the application of (otherwise straightforwardly interpretable) definitions of criminal assault could be relieved of their asterisks.[viii]

Pursuing an outright ban, however, would seem to be rather extreme, heavy-handed or simply far-fetched. Indeed, an immediate prohibition on religious circumcision would be premature (to say the least), and likely even counterproductive. Much more debate is needed, in both the academic and the public arenas. At the same time, however, one should remember that it is already illegal in most jurisdictions[ix] to cut into the genitals of any *female* human being, to any degree, with any instrument, for any reason, at any age, without her informed consent—and in some places even with it—barring some emergency related to health. Even the tiniest ritual 'nick' is federally banned in the USA, and this is an intervention that removes no tissue whatsoever, making it substantially *less* invasive than the most commonly performed parallel for boys.[x]

Western culture has evidently come to a point at which the taking of a sharp object to a little girl's vulva is regarded as being beyond the pale, no matter how slight the intended incision, and no matter how pious the motivation of the parents. Since the same culture has so far failed to reach an equivalent point in considering analogous incisions into (and excisions from) the genitals of little boys, one wonders *why* it has failed to do so, and whether it should reasonably be expected to move more sure-footedly in that direction. The philosopher Anders Sandberg has recently offered a useful perspective on this matter:

> … what is [likely] going on is [a] status quo bias and [something about] the social capital of religions. We are used to [male] circumcision in Western culture, so it is largely accepted. It is very similar to how certain drugs are regarded as criminal and worth fighting, yet other drugs like alcohol are merely problems: policy is set, [not] based on actual harms, but based on a social acceptability scale and who has institutional power. This all makes perfect sense sociologically, but it is bad ethics.[19]

Getting practical

Be that as it may, sociological considerations certainly *do* matter in the practical realm of passing laws and making policy. Accordingly, one argument against the immediate prohibition of infant male circumcision is that Western cultures may simply not yet be ready for so strict a legal manoeuvre—especially in light of the notorious 'double standard'[20 21] regarding male versus female genital cutting that prevails in Anglophone societies. Indeed, as Julian Savulescu,[22] Matthew Johnson[8] and Hanoch Ben Yami[10] all point out, fully fledged prohibitions instituted in advance of cultural readiness can lead to troubling side effects, such as a black market for the banned practice, which in this case might involve 'back-alley' circumcisions performed by incompetent individuals. Accordingly, Savulescu advocates a policy of harm reduction rather than prohibition; Johnson suggests that religious groups should be held accountable for any injuries that *do* ensue from their 'invasive rites'; and Ben Yami outlines a series of gradual reforms such as mandatory administration of anaesthesia and the narrow illegalisation of the metzitzah b'peh.[xi] Ben Yami argues that these measures could reduce risk, pain and suffering in the short-term while contributing to a wider culture shift in the long term.

CONCLUSION

With perspectives in this issue ranging from Joseph Mazor's[7] articulate *defence* of infant male circumcision as both morally and legally permissible[xii] to J Steven Svoboda's[14] contention that circumcision is an unambiguous affront to human rights, it is clear that the debate on this issue is far from over. Nevertheless, the overall balance of opinion may be shifting toward one of general scepticism concerning circumcision—even *within* religious communities. Increasingly, individual Muslim and Jewish thinkers are managing to persuade their fellow faith practitioners that the involuntary ablation of children's foreskins is unnecessary for contemporary religious observance.[xiii] This type of intra-religious influence can be traced at least to the famous 19th century debates within the German Jewish community concerning whether or not circumcision was to be performed in the modern era.[23] It continues today with the founding of such groups as Jews Against Circumcision[24] as well as with the establishment of symbolic alternatives to preputial amputation. One such alternative is the non-violent, non-sexist[xiv] welcoming ceremony known as brit shalom[xv] officiated by a growing number of Jewish rabbis.[25]

As Dena Davis puts it in the title to her essay,[18] we are dealing with a fundamental incompatibility between what she calls 'ancient rites' and 'new laws.' How this incompatibility will be addressed, and whether it can be dealt with in a way that

[viii]These laws do not *literally* have asterisks. In the typical case, there is one statute banning assault, or sexual assault, or invasive rites, or child abuse, and then a second law saying that no criminal violation shall result from ritual (male) circumcision—even though it formally fits the definition of assault/abuse in the first law. For examples, see Geisheker.[17]

[ix]Following the 1986 UN Convention on the Rights of the Child.

[x]See Davis.[18] In contrast with the outright prohibition of female genital cutting in Western democracies, male genital cutting is not only legally permitted, but is not even regulated. In other words, in most parts of the world, including in developed nations, any person, for any reason, using any implement, in any environment, with any degree of pain control (or none), any amount of training (or none), any assurance of a sanitary environment (or none), and any level of medical knowledge (or none), can attempt to perform genital surgery on a newborn boy if it is claimed that the procedure is a circumcision. It is only when such lay attempts lead to emergency hospitalisation of the infant because his life is in danger that public concern becomes aroused. See Geisheker[17] for further discussion.

[xi]Metzitzah b'peh is a form of circumcision practiced by some Orthodox Jews in which the ritual circumciser takes the baby's penis into his mouth to suck away the blood after the wound has been inflicted, sometimes transmitting the herpes virus. See the discussions by Ben Yami[10] and Davis.[18]

[xii]Mazor concedes, however, that circumcision probably should not be performed in the 'secular' case when considering the child's best interests—one of which is an interest in self-determination. He simply leaves the ultimate decision up to the parents.

[xiii]Of course, religious fundamentalists within Islam and Judaism will not find these sorts of arguments compelling, but they do not have—and are not entitled to—a monopoly on matters of theology, faith or ritual practice.

[xiv]In Judaism, female babies are unapologetically excluded from participation in the sealing of the divine covenant; hence, the practice is inherently sexist. Islam is more 'egalitarian' in permitting circumcision of girls as well as boys.

[xv]Brit shalom means 'covenant of peace.' Contrast with brit milah, the name for the traditional Jewish genital cutting ceremony, which means (loosely) 'covenant of circumcision' (milah means 'to cut'). More information on this alternative, peaceful brit can be found by visiting the website at ref. [25]

ensures not only the coherence and proper functioning of religious communities but also the well-being and basic rights of the children being raised within their care—only time will tell. This Special Issue on circumcision marks an important contribution to the ongoing discussion. What is needed now is productive and respectful dialogue moving forward.

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